THE STATE

Versus

PERSEVERANCE MUTAMIRI

IN THE HIGH COURT OF ZIMBABWE
MUZOFA &BACHI MZAWAZI JJ
CHINHOYI, 30 January/ 2 March 2026

Criminal Review judgment

BACHI MZAWAZI J: This is a matter for automatic review involving an unrepresented female youth. The record is imbued with several procedural irregularities. The matter was brought as a plea, but from the initial remand to the date of final verdict, it was clear that the accused was not completely admitting to the offence charged but tendering a defence. This is where the court lost its vigilance. Instead of stopping the proceedings and ask the prosecution to call witnesses and lead evidence, the court proceeded to convict the undefended accused as charged. Like they say the court room is a legal minefield to be navigated safely by only those legally equipped. From my considered perspective not only was that procedural aspect wrong against the underpinnings of the facts and the accused's defence but both the charge and the conviction were also misplaced.

The accused, a female youth aged 21 was brought to court, charged with aggravated indecent assault in contravention of s66(1) (b of the Criminal law codification and reform Act [Chapter 9:23]. She was sentenced to 12 years imprisonment, with 4 years suspended for 5years on conditions. She is serving an effective 8 years. She left behind a 3-year-old child.

It is alleged that the accused had sexual intercourse with her cousin a boy aged 14. The boy had been left in her custody whilst his mother travelled to South Africa sometime in July 2025. They both shared a single multi-purpose room also serving as a bedroom. The two had consensual sex after viewing pornographic content from a mobile phone belonging to the complainant. The offence came to light a couple of months later when the teenage boy at a different location then reported to an aunt. The complainant had developed some form of a sexually transmitted disease suspected as Syphilis prompting the disclosure which led to the accused's arrest and the charges.

Whilst the State alleged that it was the accused who took the initiative, the accused maintained that it was the teenager who played the leading role after they both had been heavily influenced by the uncensored viewing of the illicit and immoral video material from the complainant's phone. She stated that the young boy went into a sexual hormonal overdrive by caressing her breasts and all over, thereafter one thing led to the other leading to consensual sex. It was her evidence that they had consensual sex on two occasions. The accused further, declined being positive of any sexually transmitted decease let alone syphilis as both the complainant and herself had been medically examined and found free of the diseases. She did not deny that the boy was under the age of 18 but insisted that she did not entice, force or coerce him.

What is crucial to note is that the explanation which revealed the accused's defence and evidence took place during both her initial and final appearance before the court. At the first instance, the court observed the first procedural step to postpone the matter and allow the prosecution to bring their witnesses. However, after several false starts, on the final day of the verdict, after again putting the essential elements to the accused and recording the same responses disclosing a defence the court proceeded to convict the accused as charged and sentenced her to the lengthy custodial term as highlighted above.

The court fell into a grave error of not analysing the charge to see it tallied or matched with the facts, explanation or defence proffered by the undefended accused since day one. Not only did the trial err in convicting the accused on charge that was of tangent with facts but also in convicting on a guilty plea in the face of a defence. These glaring procedural irregularities vitiates the whole proceedings rendering the conviction unsafe.

Had the trial court been as diligent as he should have done, in a case where the accused was not only a youth but unrepresented, he should have examined the charge from the moment he was recording the responses to the essential elements up to the conviction stage.

Section 66 reads;

66 Aggravated indecent assault

(1) Any person who–

(a) being a male person−
(i) commits upon a female person any act, other than sexual intercourse or anal sexual inter-course, involving the penetration of any part of the female person's body or of his own body; or
(ii) commits upon a male person anal sexual intercourse or any other act involving the penetra-tion of any part of the other male person's body or of his own body;
(b) being a female person−
(i) has sexual intercourse with or commits upon a male person any other act involving the penetration of any part of the male person's body or of her own body; or
(ii) commits upon a female person any act involving the penetration of any part of the other female person's body or of her own body; with indecent intent and knowing that the other person has not consented to it or realising that there is a real risk or possibility that the other person may not have consented to it, shall be guilty of aggravated indecent assault and liable to the same penalty as is provided for rape.
(2) For the purpose of determining the sentence to be imposed upon a person convicted of aggravated indecent assault, a court shall have regard to the same factors as are mentioned in connection with determining the sentence to be imposed upon a person convicted of rape in subsection (2) of section *sixty-five*, in addition to any other relevant factors and circumstances. (My emphasis).

An in-depth analysis of this section, shows that the offences in this section are equated to that of rape. Hence the penalty is the same as that of person convicted of rape. Rape is provided for under s65 of the Code and its definition is genderised to mean non- consensual sex or forced sexual intercourse perpetrated on a woman by a man. It is thus, clear that s65 does not cater for situations that were then legislatively provided under other sections like s64, 66, and 67 of the Criminal law Code.

Section 64 is the generic section that permits persons to be charged under s65, 66 and 67 of the Code for sexual offences of various categories committed on young persons with ages ranging from under 12, over 12, 14 and below 14 years of age. Whilst those under 12 at law are deemed incapable of consenting to sex, those above 12 to 14 in terms of s64 may be excepted. The exceptions are found in s64(2) (a) and (b).
The appropriate section says:

64 Competent charges in cases of unlawful sexual conduct involving young or mentally in-competent persons
(1) A person accused of engaging in sexual intercourse, anal sexual intercourse or other sexual conduct with a young person of or under the age of twelve years shall be charged with rape, aggravated indecent assault or indecent assault, as the case may be, and not with sexual intercourse or performing an indecent act with a young person, or sodomy.

> (2) A person accused of engaging in sexual intercourse, anal sexual intercourse or other sexual conduct with a young person above the age of twelve years but of or below the age of fourteen years shall be charged with rape, aggravated indecent assault or indecent assault, as the case may be, and not with sexual intercourse or performing an indecent act with a young person or sodomy, unless there is evidence that the young person–
>
> (*a*) was capable of giving consent to the sexual intercourse, anal sexual intercourse or other sexual con-duct; and
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> (b) gave his or her consent thereto. (My emphasis)

Had the trial court did his homework he would have discovered that the key ingredient of s66(1)(b)(i) (ii) like that of rape under s65 is the absence of consent. Therefore, once there was evidence or a defence of consent there was need to call evidence to rebut the absence of consent through a trial. If it was a plea, as supposedly was what the trial court wrongly concluded, then there was need to interrogate the charge.

A charge not tallying with the facts, or evidence or defence

The presiding court has a duty to explain to an undefended accused person the charge. This is the stage the court will establish whether the charge marries with the facts. If they do not, the court will then do one of the following, order for the amendment of the charge order the striking of the vague and embarrassing sections not tallying with the facts or quash the charge.

In *S v Svondo* 1984(1) ZLR 140(H) the court pronounced that,

It is trite law that the trial magistrate must ensure that the accused fully understands the nature of the charge. To do this, he/she should examine the charge before it is put to the accused in order to remedy any defects and to clarify any obscure points. The court must also ensure that several elements of the offence are understood and admitted by the accused.

See, *Criminal Procedure in Zimbabwe* – by J R Rowland at 17-6; *S v Sikarama* & *Ano*r 1984(1) ZLR 170(H) and *S v Dube & Anor* 1988(2) ZLR 385 (S) *S v Moyo and Anor* HB21/09. MagistrCharge sheet did not tally with facts in the state outline. See S v Moyo and Anor HB21/09.

In *S v Forget Ndlovu HB69* 2013, It was highlighted that the Magistrate must examine the charge before it is put to the accused person. MUTEMA J went on to say;

Judicial officers wield a lot of power and deal with one of the most fundamental rights of an individual, viz the right to liberty. It is on this basis that they are always enjoined to apply their mind to their work with impeccable diligence. A slipshod and slapdash way of doing judicial work cannot be countenanced. It was the trial magistrate's duty to put the State to terms to disclose as regards what charge it had nailed its colours to the mast.

In this respect, the court committed its first error of not ensuring that the charge matched the explanation made by the accused especially after learning that the complainant was either nowhere to be found or no longer willing to prosecute their case.

Proceeding to convict on a guilty plea in the face of a defence

Procedurally once an accused person who has been brought for a plea recording offers a defence, or an explanation which shows they are not admitting to the charge or the essential elements of the offence, then the court is mandated to stop the proceedings and refer the matter to trial. In this case, as already examined, s66 involves a sexual act where consent is absent. That is forced sexual intercourse. It was thus imperative that the trial court stops the proceedings as soon as the accused gave an explanation disclosing a defence. The failure by the court to do so in this case was a gross misdirection. The law imposes a positive duty on the presiding magistrate when recording a plea of guilty to ensure that the rights of such persons are carefully protected, respected and upheld articulated in the case of *S v Bvuto* HH94/18.

In *Sv Chitsinde* 1982 (2) ZLR 91, It was noted that the magistrate ought to have convicted the accused without hearing evidence,

In *S v Kayimbanemoyo* 1997(1) ZLR211(H) at p.215. the court held that,

"It is clear from the foregoing that the error committed by the trial magistrate was to continue with the trial on the basis that accused had pleaded guilty in spite of the fact that he had given an explanation about the goods. In such a situation the magistrate should have altered the plea to not guilty in terms of s272 of the Criminal Procedure and Evidence Act, and required the prosecution to proceed to trial by calling witnesses to give oral evidence."

In *S* v *Dube & Anor* 1988 (2) ZLR 385 (SC) the court cautioned:

> "Where there is a plea of guilty, judicial officers must be careful not to regard every fact as proved just because it is admitted. Where the accused admits "possession" of a prohibited article, the court must establish just what the accused is admitting, possession being a difficult legal concept. A similar caution applies to the explanation

of the charge and the elements of the offence. Section 255(3) of the Criminal Procedure and Evidence Act [Chapter 59] requires that the court's explanation, any statements by the prosecutor and the reply and statement by the accused be recorded. This record should be full. Where there is more than one accused person, each should be dealt with separately.

In *S v Bvuto* HH94/18, it was highlighted that:

> Where the court decides to proceed in terms of s 271 (2)(b) of the Criminal Procedure and Evidence Act, the essential elements must be explained in such a way as is calculated to inform the accused of the nature of the charge in sufficient clarity and detail as will suggest to him, in his knowledge of the matter, whether he has a defence to offer "In my respectful view, it is high time that our legal system give effect to the constitutional right to a fair trial by enacting appropriate legislation that would entitle every suspect standing trial who faces a minimum mandatory sentence to legal representation at the expense of the State. Besides being a positive fulfilment of the right to a fair hearing, such a step would ensure that the wheels of justice turn more swiftly and efficaciously. The Law Development Commission should consider the suggestion seriously.''

As it where, it is evident that the court fell into serious error, by proceeding in the face of a defence. Once the accused had tendered a defence, the court was supposed to stop proceedings and refer the matter to trial for the calling of evidence.

On the second rung, the trial court erred by convicting the accused in terms of s66 when it was clear from the explanation that there was consent. This however does not detract from the fact that he was not supposed to proceed to convict at all under such circumstances. However, for the purpose of completeness, everything being equal, we already noted above that s64 exempts charges specified therein being preferred where the young persons consent, or there is evidence of consent or such a possibility. This where s70 then comes into play to plug that void.

Section 4 of Criminal laws amendment (Protection of Children and Young Persons) Act No. 1of 2024 states:
New section substituted for section 70 of Cap. 9:23 Section 70 of the Criminal Law Code is repealed and the following is substituted—
"70 Sexual intercourse or performing indecent acts with children between the ages of 12 and 18.
(1) Subject to this section, any person who—
(a) commits upon a child any act involving physical contact that would

be regarded by a reasonable person to be an indecent act; or
(b) solicits or entices a child to have sexual intercourse with him or her, or to commit any act with him or her involving physical contact that would be regarded by a reasonable person to be an indecent act; shall be guilty of sexual intercourse or performing an indecent act with a child, as the case may be, and liable to a fine not exceeding level 12 or imprisonment for a period not exceeding ten years or both.

(2) It shall be no defence to a charge of sexual intercourse or performing an indecent act with a child to prove that he or she consented to such sexual intercourse or indecent act.

That being the case, the trial court, if the proceedings after plea had been proper, did have ample room to manoeuvre. It had an option to convict on the competent verdict under s 70 of Criminal Laws Amendment (Protection of Children and Young Persons) Act No. 1 of 2024, or acquit the accused on the charge that was before it. See, *S v Sakawa* HH262/2020.

Since, the main findings of this court are that the court should not have proceeded any further, than the plea recording as soon as it learnt of the defence, and that the combination of gross irregularities pointed out herein go to the root of the whole case and conviction thereby vitiating the proceedings, there is no need to remit the case for a hearing de novo.

When the State's witness was not forthcoming, being fully aware of the partial admission, it should not have proffered the case as a case for a guilty plea recording. It had the prerogative to withdraw charges, which would inevitably result in an acquittal since the accused had pleaded, or vie for a refusal of further remand since the accused was unrepresented.

The best course of action is to quash both the conviction and sentence and acquit the accused on the charges that she was convicted of. However admittedly, an offence was committed. In such a scenario, the review court cannot turn a blind eye. Though the accused has been acquitted on the charge as detailed herein, it is in the interests of justice that she be convicted of contravening s70 of the Criminal law Codification and Reform Act as amended. pursue. Whilst this court has the powers to order a conviction on the proper charge after acquitting on the wrong one, the prosecution prerogative to proceed on the correct charge may be hampers by the defence of double jeopardy.

Lastly, from a holistic perspective, the sentence was even more severe and shocking given the mitigation. Moreso when the prosecution had offered a penalty of 5 years in accordance with the sentencing guidelines. Understandably, the morally abhorrent sexual relationship between two related persons, and the fact that the accused was the older of the two may have influenced the court in passing such a sterner penalty. However, sight must not be lost that our children of today, with the negative impact of uncensored social media exposure and unrestricted access to harmful content, cannot be adjudged as completely innocent. As in this case, the teenager is the malcontent. Societal measures and mechanisms must be seriously put in place even at the family institution level and schools to mitigate negative impact of unsupervised and uncensored access to morally destructive content.

Further, it is a recipe for disaster to allow young people, adolescents or children of the opposite sex, these morally decadent days, even of the same sex to share the same blankets let alone the same roof unsupervised.

Disposition

In a nutshell, it is clear that indeed an offence was committed, but the conviction given the procedural irregularities identified herein and on a wrong charge cannot stand. Accordingly,

It is ordered:

1. Both the conviction and sentence of the trial court under s66 of the Criminal law Code are accordingly quashed.
2. The accused is thus found not guilty and acquitted in respect of that offence.
3. The accused is found guilty of contravening s70 of the Criminal Law Codification and Reform Act.
    a. She is sentenced to 36 months imprisonment with 24 months imprisonment suspended, on condition she does not commit offences involving sexual assaults, or indecent assault, upon which if convicted will be sentenced to imprisonment without an option of a fine. 12 months is effective taking into account time already served.

Muzofa J, I agree.